

26LBCV00236 26LBCV00236

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-08-10

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Case Number: 26LBCV00236 Hearing Date: August 10, 2026 Dept: S25

Motion: Defendant American Honda Motor Co., Inc.'s Demurrer to and Motion to Strike Portions of the First Amended Complaint

Moving Party: Defendant American Honda Motor Co., Inc. ("Defendant")

Responding Party: Plaintiff Lisa D Weber ("Plaintiff")

Background

On January 28, 2026, Plaintiff filed a complaint against Defendants American Honda Motor Co., Inc. and Does 1 to 10, alleging five causes of action: (1) Violation of Civil Code Section 1793.2(d); (2) Violation of Civil Code Section 1793.2(b); (3) Violation of Civil Code Section 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment. On May 7, 2026, Plaintiff filed a first amended complaint ("FAC"). Plaintiff asserts that on or about December 8, 2022, Plaintiff entered into a warranty contract with Defendant, regarding a 2022 Honda Pilot, vehicle identification number 5FNYP6H39NB086078 ("Subject Vehicle") and that defects and/or nonconformities to the warranty manifested themselves in the vehicle, but Defendant failed to fix them. (FAC ¶¶ 7-24.) On June 8, 2026, Defendant filed the instant demurrer to and motion to strike portions of the FAC.

On July 29, 2026, Plaintiff filed a NON-OPPOSITION.

Tentative Ruling

Defendant demurs as to the fifth cause of action for fraudulent inducement – concealment on the grounds that the fifth cause of action:

fails to plead fraud with the required particularity, including the "how, when, where, to whom, and by what means" necessary to state a claim for fraudulent concealment;

fails to allege facts establishing Defendant owed Plaintiff a duty to disclose;

fails to allege facts demonstrating Defendant had actual exclusive pre-sale knowledge of the alleged defect in the Subject Vehicle;

fails to allege any actionable concealment or partial representation by Defendant; and

is barred by the economic loss doctrine.

Summary of Motion to Strike

Defendant also moves to strike Plaintiff's request for punitive damages.

Plaintiff has filed a NON-OPPOSITION to the instant demurrer and motion to strike.

The instant demurrer to the fifth cause of action is SUSTAINED without leave to amend.

The motion to strike is GRANTED without leave to amend.